NON-DISCLOSURE AGREEMENT

Rev	Date	Issued	Checked	Approved	Remark

NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("***Agreement***") is entered into on _20th March 2025, between Reliance Industries Limited, a company incorporated and registered under the laws of the Republic of India, and having its registered office at Maker Chambers IV, 3rd Floor, 222 Nariman Point, Mumbai 400021, India (hereinafter referred to as "***Reliance***" which expression, unless repugnant to the context or meaning thereof, shall mean and include its successors and assigns) and _NIHVA Technologies Pvt Ltd corporation, duly incorporated or organized under the laws of |<Country>|, having its registered office at Chinchwad (hereinafter referred to as the "***Receiving Party***" which expression, unless repugnant to the context or meaning thereof, shall mean and include its successors and permitted assigns). Each, a "Party" and collectively, the "Parties".

RECITALS

A. Reliance and the Receiving Party contemplate substantive discussions regarding Retractable Roof Supply ("***Authorized Purpose***"). Reliance is willing to disclose Confidential Information to Receiving Party for the Authorized Purpose. Such disclosures may be made by Reliance or by a third party authorized by Reliance in writing to make such disclosures to Receiving Party (such third party hereinafter referred to as "***Representative***"). "***Confidential Information***" means confidential and proprietary information of Reliance or confidential and proprietary information of third parties disclosed by Reliance or Representative to Receiving Party both prior to and following the date of this Agreement, including but not limited to inventions, ideas, engineering and design information, processes, trade secrets, methods, copyrights, patents, techniques, formulas, computer programs, hardware, specifications, technical information, requests for proposals or quotes, data sheets, prototypes, designs, know-how, drawings, plans, negatives, photographs, marketing plans, financial data, customer lists, referral and vendor sources, policies and other procedures, and other information in written, oral, electronic and/or physical/sample form (provided that if provided orally, the Confidential Information shall be summarized in writing and the written summary furnished within 30 calendar days of disclosure), and regardless of whether or not marked or identified as "CONFIDENTIAL" or "PROPRIETARY". The Authorized Purpose shall also be deemed to be Confidential Information of Reliance.

B. Reliance and Receiving Party desire to protect the Confidential Information pursuant to the terms of this Agreement.

NOW, THEREFORE, in consideration of the mutual consideration and obligations contained herein, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

1. Acknowledgment and Sufficiency of Consideration. The Receiving Party acknowledges and agrees that Reliance is affording an opportunity to the Receiving Party to present itself for Reliance's consideration for a potential business relationship that results in a benefit to the Receiving Party. The Receiving Party further acknowledges and agrees that the foregoing benefit and additional benefits that will accrue to the Receiving Party, if selected by Reliance, are adequate and sufficient consideration for the Receiving Party to enter into this Agreement and be obligated by the restrictions and covenants set forth in this Agreement.

2. Scope. The parties agree that the Confidential Information shall be used and reviewed by the Receiving Party only for the Authorized Purpose, and for no other purpose.

3. Restrictions. The Receiving Party agrees to protect the Confidential Information with the same degree of care that it uses to protect its own confidential information, but in all events will use at least a reasonable degree of care. In addition to such degree of care, the Receiving Party shall not in any way (a) sell, trade, publish, disclose or otherwise disseminate or transfer the Confidential Information to any third party at any time, including consultants, except as approved by Reliance in

(c) becomes known to the Receiving Party through disclosure, in each case on a non-confidential basis from a source without a contractual, legal or fiduciary obligation of confidentiality to Reliance or Representative and without the Receiving Party or any Affiliated Persons violating any of the provisions of this Agreement; or

(d) is independently developed by the Receiving Party without breach of this Agreement.

Specific information shall not be deemed to be within one of the above exceptions merely because it is encompassed by more general disclosure included within, or can be assembled by selection of disclosures from, information within the above exceptions.

6. Enforcement. The Parties understand and agree that, because of the unique nature of the Confidential Information and the confidential nature of any discussions, in the event of any breach or threatened breach of this Agreement by Receiving Party any of its Affiliated Persons, remedies at law may be inadequate to protect Reliance, Reliance may suffer irreparable harm, and the actual damages would be impracticable or extremely difficult to determine. Therefore, the parties hereto agree that in the event of any breach or threatened breach of this Agreement by Receiving Party or any Affiliated Person, Reliance may, without prejudice and in addition to any other remedies which it has at law or equity, immediately apply for and enforce injunctive relief prohibiting breach of this Agreement and/or an order compelling specific performance of this Agreement. The Parties also agree that all the provisions of this Agreement shall be specifically enforceable against the Receiving Party and all Affiliated Persons by injunctive and other relief.

7. Return of Materials. The Receiving Party shall, upon the termination of this Agreement or at the request of Reliance, (a) return to Reliance all documents, drawings, electronic storage media and other tangible manifestations of Confidential Information received by the Receiving Party or any Affiliated Person, and (b) permanently destroy, erase or render unreadable all copies of any analyses, compilations, studies or other documents prepared by or on behalf of it or for internal use which reflect the Confidential Information, within five (5) business days of such termination or request, as the case may be. The Receiving Party shall certify to Reliance in a writing signed by an officer of the Receiving Party that the Receiving Party has complied with this Section 7. The Receiving Party shall thereafter retain no copies, transcriptions or summaries of any portion of the Confidential Information, except that the Receiving Party may retain an archive copy of Confidential Information in a secure manner only for use in enforcing rights and responding to claims based on such documents.

8. Legal Process. In the event that the Receiving Party, or any other party to whom the Receiving Party has disclosed Confidential Information, is required by judicial or administrative process to disclose any part of the Confidential Information, the Receiving Party shall: (i) provide adequate advance written notice to Reliance of such requirement in order to allow Reliance a reasonable time to oppose such process, (ii) cooperate with Reliance in efforts to oppose such process, and (iii) if disclosure is still required, disclose only that portion of the Confidential Information that the Receiving Party (or such other party) is advised, by its legal counsel in written form, that it is legally required to disclose to comply with such process. The Receiving Party shall provide a complete accounting to Reliance of the Confidential Information that was disclosed by the Receiving Party or such other party.

9. Notification. The Receiving Party shall, as soon as practicable after becoming aware of any unauthorized use or disclosure of Confidential Information by Receiving Party, any Affiliated Person or any third party, advise Reliance of such unauthorized use or disclosure and shall reasonably cooperate with Reliance's prosecution of any such unauthorized use or disclosure. Such prosecution will be under the control of Reliance. The Receiving Party will additionally take all further steps requested by Reliance or Representative to prevent, control or remedy any such violation.



writing in advance; (b) use (except as specifically permitted in writing by Reliance), copy, reproduce (whether by mechanical or electronic means), modify and/or transfer the Confidential Information and/or merge the Confidential Information with any other technology, formula or materials; (c) reverse engineer any of the Confidential Information; (d) remove any trademark, copyright, patent or mask work notices and/or other proprietary legends contained within any of the Confidential Information; and/or (e) disclose the parties' discussions about the Confidential Information and/or their potential business relationship to any third party. The Receiving Party agrees that it will disclose the Confidential Information only to its directors, officers and employees (i) who have a specific need to know regarding the Authorized Purpose, and (ii) who are bound by a written obligation of confidentiality to the Receiving Party no less restrictive than the provisions of this Agreement; in each case only to the extent necessary for the Authorized Purpose. The Receiving Party agrees that it shall not in any way incorporate, use and/or exploit any part of the Confidential Information (disclosed separately or embodied in products, equipment or operations provided by Reliance to the Receiving Party) in its and/or any other person's products or businesses, including without limitation to develop, produce and/or distribute any products or services that derive from or use the Confidential Information. The Receiving Party will cause all of its directors, officers and employees to comply with this Agreement. Any failure by any of the Receiving Party's directors, officers and employees to comply with this Agreement, or any act or omission by any of the Receiving Party's directors, officers and employees that, if committed by the Receiving Party, would constitute a breach of this Agreement, will constitute a breach of this Agreement by the Receiving Party for which the Receiving Party will be responsible.

4. Disclosure to Affiliates. The Receiving Party may disclose Confidential Information to its Affiliates solely and only to the extent as required for the Authorized Purpose, provided that such Affiliates have agreed in writing to the confidentiality, limited use and other obligations of the Receiving Party as set forth herein. The Receiving Party shall provide Reliance with an executed copy of such agreement upon Reliance's request. The Receiving Party shall ensure that its Affiliates and their directors, officers and employees to whom Confidential Information has been disclosed shall at all times be obligated in the same manner as required of the Receiving Party herein. Any failure by any of the Receiving Party's Affiliates or their directors, officers and employees to comply with the Receiving Party's obligations under this Agreement or with their respective confidentiality agreement with the Receiving Party or such Affiliates will constitute a breach of this Agreement by the Receiving Party. "***Affiliate***" means, with respect to an entity, any company, corporation, partnership, or any other entity (whether incorporated or not) which is at the time in question directly or indirectly controls, is controlled by or under direct, indirect or common control with, such entity. For the purposes of this definition, "***control***" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of such entity, whether through the ownership of voting securities, by agreement with respect to the voting of securities, by other agreement conferring control over management or policy decisions, by virtue of the power to control the composition of the board of directors or managers, or otherwise. The terms "***controlling***" and "***controlled***" shall have correlative meanings. The Receiving Party's Affiliates, and the Receiving Party's and its Affiliates' respective directors, officers and employees, are collectively referred to as "***Affiliated Persons***."

5. Exceptions. The obligations and restrictions herein shall not apply to Confidential Information that falls within any of the following exceptions, provided the Receiving Party proves by credible written evidence that such information:

(a) was in the possession of the Receiving Party at the time of receipt thereof from Reliance or Representative without obligation of confidentiality;

(b) is or becomes public knowledge through no fault of the Receiving Party or any Affiliated Person;

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10. License; Ownership. Neither this Agreement nor any disclosure of Confidential Information pursuant to this Agreement will constitute or imply a grant of any license, conveyance or other right or interest under any trademark, patent, copyright, trade secret or other intellectual property rights therein. Reliance retains the sole and exclusive ownership and intellectual property rights to the Confidential Information.

11. Disclosure of Discussions. The Receiving Party shall not, and shall direct all Affiliated Persons not to, disclose to any person or entity the fact that discussions or negotiations may take place or are taking place concerning the Authorized Purpose or any of the terms, conditions or other facts with respect to the current or potential relationship between the Receiving Party and Reliance, without the prior written consent of Reliance.

12. Dispute Resolution. The Parties shall endeavour, in the first instance, to resolve any dispute, disagreement or difference arising out of or in connection with this Agreement, including any question regarding existence, breach, validity, and the rights and liabilities of the Parties to this Agreement (a "***Dispute***") through good faith negotiations to be continued for a period of sixty (60) days. In the event, such settlement of Dispute is not reached, each of the Parties irrevocably and unconditionally consents that any Dispute shall be referred to arbitration in Mumbai, India or such other place mutually agreed by the Parties in accordance with the provisions of the Indian Arbitration and Conciliation Act, 1996 and its amendments or re-enactments thereto. The arbitration shall be conducted in the English language. The Parties shall mutually agree upon and jointly appoint an impartial and independent sole arbitrator (the "***Sole Arbitrator***") in the event that either Party gives the other Party arbitration notice to settle such Dispute by arbitration. The Sole Arbitrator shall constitute an "***Arbitration Tribunal***". The decision of the Arbitration Tribunal shall constitute an arbitration award of the Arbitration Tribunal (the "***Award***") and shall be final and binding on the Parties. The Award of the Arbitration Tribunal shall be in writing and shall be signed by the Sole Arbitrator. The Award may be enforced and entered as a judgment in a court of competent jurisdiction. Each Party and the Sole Arbitrator and staff of the Arbitration Tribunal shall maintain confidentiality of the arbitration proceedings, the Award, including all pleadings and documents, all the hearings in arbitration proceedings, except as may be necessary to prepare for or conduct the arbitration hearing on the merits, or except as may be necessary in connection with a court application for conservatory and interim measures, seeking orders for direction against one or more of the foregoing parties to honour this Agreement or in connection with a judicial challenge to an Award or its enforcement, or unless otherwise required by law.

13. Jurisdiction. Subject to Section 12, each party to this Agreement hereby irrevocably submits to the non-exclusive jurisdiction of the Courts at Mumbai for seeking equitable reliefs, interim reliefs, or interim measures. Notwithstanding the foregoing, the Parties shall have the discretion to seek equitable reliefs, interim reliefs, or interim measures in any court of competent jurisdiction (a) before commencement of arbitration proceedings as per Section 12 above, or (b) during arbitration proceedings, or (c) at any time after the making of the Award by the Arbitration Tribunal but before it is enforced.

14. Governing Law. This Agreement shall be interpreted and enforced according to the laws of India excluding its conflicts-of-laws provisions which would refer construction hereof to the laws of another jurisdiction. All communications between the parties shall be in English.

15. No Further Obligations. The Receiving Party acknowledges that, unless and until a written definitive agreement regarding the Authorized Purpose has been executed and delivered, Reliance will have no legal obligation of any kind whatsoever with respect to the Authorized Purpose or any similar transaction by virtue of this Agreement or any other written or oral expression with respect to such transaction (except for obligations under any other written agreements between the parties expressly intended to be binding). Additionally, Reliance may terminate discussions and negotiations with respect to the Authorized Purpose at any time and, upon such termination, decline to furnish any

further Confidential Information. Reliance's exercise of the aforementioned rights shall not affect its enforceability of any provision of this Agreement.

16. No Partnership. This Agreement shall not be deemed to create a joint venture or partnership between the Parties or any other form of legal association which would impose liability upon one party for the act or failure to act of the other Party, or to obligate the Parties to enter into a joint venture, partnership or other such legal association. This Agreement shall not be deemed to create an agency relationship between the Parties or otherwise to make one Party the legal representative of the other Party.

17. Disclaimer. The Receiving Party acknowledges that neither Reliance nor Representative has made, and that each such Party does not make, any representations or warranties of any kind, express or implied, with respect to any Confidential Information and that neither Reliance nor Representative shall be responsible or liable for any direct or indirect expenses, losses, costs, damages or actions incurred or undertaken by the Receiving Party or any Affiliated Person as a result of the receipt and use by Receiving Party or any Affiliated Person of such Confidential Information from Reliance.

18. Notices. All notices, requests, consents, waivers or other communication required or permitted hereunder shall be in writing and shall be deemed properly served: (a) if delivered by hand and received by an authorized employee or officer of the party to whom it is addressed, (b) three (3) days after being given to an international overnight courier system with a reliable system for tracking delivery, (c) upon receipt of confirmation of receipt when sent by facsimile; or (d) fourteen (14) days after the date of dispatch by certified or registered mail, postage prepaid, return receipt requested. All notices and other communication shall be addressed as follows:

If to Reliance:

Reliance Industries Limited
Reliance Corporate Park, Ghansoli,
Thane Belapur Road Navi Mumbai 400701
Ph: _____
Attn: _____
Title: _____

If to Receiving Party:

Ph: 7758820333
Attn: Mr. Pranav Marne
Title: Technical Head

19. Term. This Agreement with respect to the Authorized Purpose shall become effective when signed by the authorized representatives of Reliance and the Second Party, and unless terminated or extended by mutual agreement of Parties in writing, shall expire upon the expiration of two (2) years from the Effective Date. The confidentiality, non-disclosure, non-use obligations under this Agreement shall become effective as set forth in this Agreement and shall remain in force for so long as (i) the Confidential Information or part thereof does not fall within any of the exceptions set forth in Section 5; and (ii) the Receiving Party or its representatives have any Confidential Information in their possession or control, provided, also that, each Receiving Party's obligations under Sections 3, 5, 7, 8, 10, 12, 13, 16 and 17 shall not expire or terminate following the expiration or termination of the Agreement.

20. Assignment. This Agreement is not assignable by Receiving Party without the prior written consent of Reliance, and any attempt to assign without such consent shall be a breach of this Agreement and shall be null and void.

21. Validity; Waiver. If any provision hereof is found by a court of competent jurisdiction to be invalid, void or unenforceable, the remaining provisions shall remain in full force and effect, and the affected provisions shall be revised so as to reflect the original intent of the parties hereunder to the maximum extent permitted by applicable law. The failure to enforce any provisions of this Agreement shall not be deemed a waiver or a continuing waiver of the same or other provision of this Agreement unless such waiver is in writing and signed by the party to be charged.

22. Severability. If any provision, or part thereof, of this Agreement is judicially declared invalid, void or unenforceable, each and every other provision, or part thereof, nevertheless shall continue in full force and effect, and the unenforceable provision shall be changed or interpreted so as best to accomplish the objectives and intent of such provision within the limits of applicable law.

23. Interpretation. The singular shall include plural and vice versa. The words "include" and "including" are to be construed without limitations. Whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms. The term "or" is not exclusive. The word "extent" in the phrase "to the extent" shall mean the degree to which a subject or other thing extends, and such phrase shall not mean simply "if." Unless expressly specified, the words "hereof", "herein" and "hereunder" and words of similar import when used in this Agreement shall refer to this Agreement as a whole and not to any particular provision of this Agreement.

24. Entire Agreement. This Agreement constitutes the entire agreement between the parties regarding the subject matter hereof and supersedes all prior or contemporaneous understandings, oral or written. This Agreement can only be amended by a writing signed by both parties.

25. Counterparts. This Agreement may be executed in several counterparts that together shall constitute one and the same instrument.

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IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

Reliance Industries Limited

RIL Legal Dept

By:_____

Name:_____

Title:_____

DO NOT SIGN UNLESS INITIALED BY RIL LEGAL DEPT.

"**Receiving Party**"

NIHVA Technologies Pvt Ltd

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By: What to mention here?

Name: Vijay M Tarak

Title: Director